

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 26, 2023, a complaint was filed with entry registration number REGAGE23e00064270068 before the Spanish Agency for Data Protection against HERMANOS FERNÁNDEZ LÓPEZ, S.A. with NIF A08620056 (hereinafter, the complained party/HERMANOS F.L.). The complainant, a member of the works council at the complained company, indicates that:

- On December 5 and 7, 2022, a sectorial strike took place, during which he claims to have been aware that the right to strike of the workers was being violated, prompting him to enter the workplace to verify the situation.
- He states that while reviewing his corporate email, he noticed that his immediate superior, head of the logistics department, had been using the computer that the complainant uses for work and sent 3 emails from the complainant's corporate email address (**EMAIL.1) in his name and using his Outlook signature, to send information or contact suppliers, which would constitute identity theft.
- The situation was reported to the Labor and Social Security Inspectorate (hereinafter, ITSS). In the conclusions of the ITSS Report dated March 13, 2023, it is noted that the head of the logistics department sent, from the complainant's work computer and using the corporate email account, at least 3 emails to 3 different email addresses, in order to continue working and not be affected by the fact that the complainant was exercising his right to strike. The ITSS resolves to initiate sanctioning proceedings against the complained party for having reasonable indications of having violated the right to strike of the workers through these actions.

The complainant submits along with his complaint: a) a complaint letter to the AEPD, dated September 26, 2023; b) ITSS report dated March 13, 2023; c) a screenshot of the email sent from the complainant's corporate address to a third party, regarding sales and invoices, using the complainant's Outlook signature, dated December 5, 2022; d) a screenshot of the email sent from the complainant's corporate address to another third party, regarding sales and invoices, using the complainant's Outlook signature, dated December 5, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by electronic notification, was acknowledged on October 11, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: On November 10, 2023, a response letter from the complained party was received by this Agency, indicating, succinctly, that it has a lawful basis to access the corporate email of the company, in accordance with the provisions of Article 6.1. f) of the GDPR, given that there is a legitimate interest for the continuation of the business, and claims that it has acted in accordance with the provisions of Article 88 of the LOPDGDD, although it refers to Article 87 of the same legal body, regarding the "Right to privacy and use of digital devices in the workplace," which allows the employer to access the contents derived from the use of digital means provided to workers solely for the purpose of controlling compliance with labor obligations and ensuring the integrity of such devices, with certain requirements established in that article that the complained party claims to have fulfilled. The complained party acknowledges that the complainant's hierarchical superior accessed his corporate email in the exercise of this power, which is provided for in the personnel security policy, published on the employee portal, which informs the worker of the possibility that the corporate email may be used by other company officials.

FOURTH: On December 12, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence and procedure.

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

It is not within the competence of this Agency to determine whether the facts under review could constitute a violation of the workers' right to strike—a matter that is already being addressed by the competent authority, which has initiated the corresponding procedure against the respondent as evidenced by the documentation provided by the complainant. The purpose of this resolution is to determine whether access to the complainant's corporate email by the company's responsible parties may constitute an administrative infringement of personal data protection regulations.

In this regard, it should be noted that the email address (corporate or personal), name, and surname of a natural person are considered personal data, the processing of which is subject to the regime established in the GDPR, as well as its implementing provisions, in accordance with Article 4.1, 2, and 7 of the GDPR, which states the following:

"Article 4 Definitions

For the purposes of this Regulation, the following definitions shall apply:

- 1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;
- 2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction; (...)
- 7) 'data controller' or 'controller': the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States (...)"

In the present case, it is established that the respondent is responsible for three operations of personal data processing consisting of the use of an employee's (the complainant's) corporate email to send three emails to different recipients on a day when the complainant was absent due to exercising their right to strike, emails that contained the complainant's personal data (corporate email address, as well as the complainant's name and first surname).

The respondent acknowledges that the head of the logistics and administration department to which the complainant belongs accessed the complainant's corporate email to send three emails to different clients on December 5, 2022, a day when none of the members of that department were present (one due to being on sick leave, and the other three for exercising their right to strike), so the head accessed the complainant's corporate email and sent three emails at 8:37 a.m., 8:38 a.m., and 12:38 p.m., as confirmed by the Labor Inspection in the report submitted to the procedure.

It is therefore considered that the aforementioned head of the department acted on behalf of the respondent company, which is responsible for the processing of its employees' personal data and specifically for the data that was used in connection with the sending of these three emails.

III

Lack of an Infringing Conduct

As the respondent company points out, the processing of personal data carried out by the employer regarding the personal data of its employees must be governed by the principles outlined in Article 5 of the GDPR, among which is the Principle of lawfulness and transparency provided in the first paragraph of the same, which states:

“1. Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'); [...]"

In furtherance of this principle, Article 6 of the GDPR regarding the “Lawfulness of processing” establishes in its paragraph 1 the circumstances under which the regulation allows the processing of personal data of a third party, referred to as “lawful bases.” If none of these circumstances or conditions are met, the processing will not be legitimate or considered lawful under the GDPR:

“1. Processing shall be lawful only if at least one of the following applies:

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a) The data subject has given their consent for the processing of their personal data for one or several specific purposes;

b) The processing is necessary for the performance of a contract in which the data subject is a party or for the application at their request of pre-contractual measures;

c) The processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) The processing is necessary to protect vital interests of the data subject or of another natural person.

e) The processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) The processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

In the present case, the defendant states in their response to the transfer made by this Agency that they have not violated the personal data protection regulations, since they had a lawful basis provided for in Article 6.1.f) of the GDPR that allowed the employer to access the corporate email of absent employees, given the legitimate interest of the controller to ensure business continuity and compliance with labor obligations, and that the employees were informed of this possibility, which is stated in the company's security policy, published on the employee portal of the company.

The defendant also points out, to substantiate the lawfulness of the access and use of the claimant's corporate email account, the following: “Similarly, we must mention the Employer's Right of Access and Control (Article 88 LOPDGDD), which stipulates that access to professional email and the adoption of surveillance and control measures fall within the employer's right to supervise and control work activities, always respecting the human dignity of the worker, in compliance with Article 13 of the

GDPR, being a communication of information to the claimant regarding the privacy policy and the use of email, fulfilling the duty to inform established.” And based on this, they maintain that: “the worker was informed at all times, considering that no privacy can be expected from the company’s email other than the relevance to respect for human dignity; it should be noted that the email used is from the domain @grupofernandez.es, which makes the ownership of this email belong to the Controller and that the Controller acted for lawful purposes and in pursuit of a legitimate interest.”

Regarding the concurrence of a possible lawful basis under Article 6.1.f of the GDPR, it would be necessary to analyze whether in the present case there is a “legitimate interest pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject.”

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that require the protection of personal data,” such as the right to privacy or intimacy of the worker regarding their communications.

In this sense, it is true that, as the respondent points out, Article 87 of the LOPDGDD (and not Article 88) would enable the employer to control the digital devices made available to the worker (such as corporate email and the terminal from which it is sent), which would include accessing an employee’s corporate account for the purpose of sending emails from it, as has occurred in the present case, provided that the following requirements are met:

Article 87. Right to privacy and use of digital devices in the workplace.

1. Workers and public employees shall have the right to the protection of their privacy in the use of digital devices made available to them by their employer.
2. The employer may access the contents derived from the use of digital means provided to workers solely for the purpose of monitoring compliance with labor or statutory obligations and ensuring the integrity of such devices.
3. Employers must establish criteria for the use of digital devices, respecting in all cases the minimum standards for the protection of their privacy in accordance with social uses and the rights recognized constitutionally and legally. In their formulation, the representatives of the workers must participate. Access by the employer to the content of digital devices for which private use has been admitted will require that the authorized uses be specified precisely and that guarantees be established to preserve the privacy of the workers, such as, where appropriate, determining the periods during which the devices may be used for private purposes.

Workers must be informed of the criteria for use referred to in this section.

That is, according to the aforementioned provision, access to the use of the devices/digital means made available to the worker by the employer (such as corporate email) will not violate personal data protection regulations, as long as the employer aims to monitor compliance with labor obligations or ensure the integrity of such devices, follows usage criteria that have been duly communicated to the worker, and respects the protection of their privacy and recognized rights.

To determine whether there is an appropriate balance between the worker’s privacy and the employer’s ability to monitor and control compliance with their labor obligations in each case, the doctrine indicated by the jurisprudence of the European Court of Human Rights should be applied, as reflected in the Judgment issued by the Supreme Court in unification of doctrine number 119/2018 of February 8, 2018, which in a case similar to the present one indicates that the employer has the legitimacy to control the electronic correspondence of employees, provided that the requirements and limits summarized in Legal Basis 7.5 are met as follows:

“The reading of the lengthy reasoning used by the ECHR in the case ‘Barbulescu’ demonstrates - we understand - that the essence of its resolution lies in the balancing of the interests at stake, in order to achieve a fair balance between the worker’s right to respect for their private life and correspondence, and the interests of the employing company (thus, in paragraphs 29, 30, 57, 99, 131, and 144). And to

this end - we summarize - decisive factors to consider are: a) the degree of intrusion by the employer; b) the existence of a legitimate business reason justifying the monitoring; c) the absence or existence of less intrusive means to achieve the same objective; d) the purpose given by the company to the results of the control; e) the provision of guarantees for the worker.

As can be seen, such considerations of the European Court add nothing substantial to the traditional doctrine of this very Chamber (the aforementioned Supreme Court rulings 26/09/07 -rcud 966/06; 08/03/11 -rcud 1826/10; and SG 06/10/11 -rco 4053/10) and to that exposed by the Constitutional Court in the contrasting judgment [STC 170/2013], as well as to the various ones cited by the High Court [thus, SSTC 96/2012, of May 7, FJ 10; 14/2003, of January 28, FJ 9; and 89/2006, of March 27, FJ 3], since undoubtedly the factors we have just outlined and which the ECHR must take into account in the necessary balancing of interests, we believe are fundamentally reconducible to the three successive judgments of "suitability," "necessity," and "proportionality" required by the TC and to which we have referred in Legal Basis Fifth [5.b)]."

Well, in the present case, the following evidence corroborates the version of the respondent party:

- In the ITSS Report of March 13, 2023, which has a presumption of veracity, it is indicated that the inspector was able to verify that on December 5, 2022, when the 3 contested emails were sent, the 4 members of the administration and logistics department to which the claimant belonged were absent (one due to leave, and 3 exercising their right to strike), with the head of the department being the only member present to be able to send these emails.

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- It is stated that the 3 emails were sent to different clients/suppliers of the defendant company, with a clear intention to continue commercial activity during the day of the strike.

- The email address accessed by the company, ***EMAIL.2, corresponded to the corporate email and not the personal email of the claimant, since the email domain matched that of the company.

- The workers were informed of the possibility of access to their corporate email by the company's management, as the document titled "security policy for personnel regarding the processing of personal data" has been submitted to the proceedings, which is published on the organization's employee portal, in the section "Information on access to email," where this possibility was clearly established in the following terms:

"The commitment that HERMANOS FERNÁNDEZ LÓPEZ, S.A.U. has assumed to ensure the privacy of personal information processed or transferred is specified in that the use of email by each worker must be carried out exclusively within the scope of labor activity, as it is a tool provided by the company for that purpose. Consequently, every worker will be obliged to perform the agreed work under the direction of the employer or the person to whom they delegate, with access to the professional email being possible both for the employer and for those persons designated or assigned by them. Furthermore, the employer may adopt the surveillance and control measures they deem most appropriate to verify the worker's compliance with their labor obligations and duties, taking due consideration of their human dignity in their adoption and application. The worker must know that, among other mechanisms, techniques may be applied to control their computer, with or without prior notice, and without prejudice to the possible application of other preventive measures, such as the exclusion of certain connections, reviews, analysis or remote monitoring, indexing of internet browsing, review and monitoring of email and/or the use of their computer or the consultation of any voice messages included in the voicemail of the mobile device provided by the company..."

Consequently, according to the doctrine of the European Court of Human Rights (ECHR) and our Supreme Court (TS), and in accordance with the provisions of Article 6.1.f) of the GDPR, and Article 87 of the LOPDGDD, this Agency understands that the defendant company had sufficient legitimacy (lawful basis) to access the claimant's corporate account, without any intrusion into the claimant's privacy, since the sending of these 3 emails was carried out from a corporate email and not from the employee's personal email, in exercise of a legitimate interest of the company to continue its

commercial activity, without the possibility of resorting to a less intrusive means, in the absence of the 4 workers who could send said email; and having complied with the guarantees provided for in Article 87 of the LOPDGDD, given that the worker had been informed of the possibility of use of their corporate email account by other company officials, as such mention is included in the company's personnel security policy.

Therefore, no infringement of the regulations on personal data protection by the defendant entity is observed, and it is not appropriate to make any pronouncement regarding the alleged violation of the right to strike claimed by the claimant, since this is a matter that exceeds the jurisdiction of this Agency.

III

Conclusion

Therefore, based on the indications in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the personal data processing operations carried out by the defendant referred to in this complaint, in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to HERMANOS FERNÁNDEZ LÓPEZ, S.A. and to the claimant. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the provision.

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additional fourth of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided for in Article 46.1 of the aforementioned Law.

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